

14TH JUDICIAL CIRCUIT COURT, MUSKEGON COUNTY, MICHIGAN

ANDREW J. PIGORS, Plaintiff, v. EMILY WATSON, et al., Defendants.

Case No. 2024-001507-DC

ADVERSARY REBUTTAL FRAMEWORK -- Watson Civil Tort

ANTICIPATED DEFENSE 1: "Legitimate Concern for Child Safety"

Their Argument: Actions were motivated by genuine child safety concerns. **Rebuttal:** Zero substantiated CPS findings. PPO obtained ex parte without evidentiary hearing. Pattern shows strategic timing (coordinated with custody hearings). 571+ days without any safety incident proves fabrication.

ANTICIPATED DEFENSE 2: "PPO Was Justified"

Their Argument: PPO was validly obtained and justified. **Rebuttal:** PPO obtained through misrepresentation (no actual threat demonstrated). Used for custody leverage, not protection. Violations of PPO terms show it was strategic tool.

ANTICIPATED DEFENSE 3: "No Intent to Cause Harm"

Their Argument: Actions were not intentional but protective. **Rebuttal:** Coordinated family action proves intent. Timing of actions shows strategic calculation. Pattern of escalation shows deliberate campaign.

ANTICIPATED DEFENSE 4: "Litigation Privilege"

Their Argument: Statements in court proceedings are privileged. **Rebuttal:** Fraud exception to litigation privilege. Perjured testimony not protected. Extra-judicial statements (CPS reports, social media) not privileged.

ANTICIPATED DEFENSE 5: "No Causation"

Their Argument: Court orders, not Watson actions, caused harm. **Rebuttal:** Court relied on Watson's false representations. Watson provided perjured testimony that formed basis of orders. 'Garbage in, garbage out' -- false inputs caused false outputs.

ANTICIPATED DEFENSE 6: "Statute of Limitations"

Their Argument: Some claims may be time-barred. **Rebuttal:** Continuing tort doctrine -- ongoing harm. Discovery rule -- full extent of conspiracy not known until recently. MCL 600.5805 -- 3-year statute for tort; conduct ongoing through present.

ANTICIPATED DEFENSE 7: "Family Court Jurisdiction"

Their Argument: Claims should be in family court. **Rebuttal:** Tort claims are separate from custody proceedings. Circuit court has jurisdiction over civil torts. Claims against non-party family members (Albert, Lori, Cody) cannot be raised in custody case.